

BOARD OF ETHICS OF THE CITY OF PHILADELPHIA

J. Shane Creamer, Jr.	:	
Executive Director	:	
Philadelphia Board of Ethics	:	
1515 Arch Street, 18th Floor	:	Matter No: 2510ET24
Philadelphia, PA 19102	:	Date Served: October 23, 2025
Petitioner	:	
	:	
v.	:	
	:	
Dee Dukes	:	
Educational Nominating Panel	:	
deedukes33@gmail.com	:	
Respondent	:	

**BRIEF IN OPPOSITION TO NOTICE OF ADMINISTRATIVE ENFORCEMENT
PROCEEDING**

Respondent, Dee Dukes, (the “Respondent”) respectfully submits this Response and Brief in Opposition to the Executive Director’s Notice of Administrative Enforcement Proceeding dated October 23, 2025, in which the Executive Director alleges probable cause to believe that Respondent violated the City of Philadelphia Public Integrity Laws, specifically Philadelphia Code § 20-610(1), as interpreted by Board Regulation No. 3.

I. Response to Executive Director’s Proposed Findings of Fact

1. Dee Dukes (“Dukes” or “Respondent”) was a member of the Educational Nominating Panel last convened in 2024. **Exhibit A** was filed on 9-25-25 by Dukes pursuant to a telephone call notification by the Ethic Board’s representative in July or August 2025. **Exhibit B** - Official Transcription of Minutes - a copy was never provided to Dukes either during or after the First Public Meeting on February 1, 2024. Dukes draws the Board's attention to the testimony

of John Dolan, which states, “First order of business is the adoption of the Rules of Procedure for the Panel. The Rules have been circulated and copies are available to the public on the Educational Nominating Panel’s new website.” Dukes’ response is that “The Rules” were NOT circulated to the Panel members at that time and/or thereafter through 2025; and more specifically, “The Rules” were NOT circulated to Dukes. Also, it is important to note that there was NOT ever any discussion during any Panel Meetings regarding the specific requirement of filing a Financial Disclosure in 2025. Also, Dukes will note that there was no prior notice of the Election of Officers, and the names of those accepting the specific roles was unknown to Dukes until on the day and time of the First Public Meeting.

2. **Exhibit C** - Dukes’ Response to Notice of Administrative Enforcement

Proceeding was filed November 17, 2025.

Dukes’ Responses to Exhibit D are as follows: **Exhibit D** - emails dated Thursday, May 22, 2025 at 4:18pm, May 8, 2025 at 1:58pm and June 13, 2025 at 8:05am were never received by Dukes. Letters via “email only” dated May 8, 2025 and June 13, 2025 were never received by Dukes. **Exhibit E** - Declaration of Alexander Kramer dated December 1, 2025.

II. Response to Executive Director’s Proposed Conclusions of Law

3-12. Dukes filed the required Financial Disclosure Form thereafter when Dukes received a telephone call notifying her of the requirement to file from the Ethics Board’s representative. During this telephone communication is when Dukes had actual and/or constructive notice in 2025. Dukes never received notification of the requirement to file in 2024 and/or prior to the deadline to file through onboarding materials, written instructions, or regular annual reminders. Dukes is simply pointing out that a penalty cannot be justified when the Ethics Board never provided the information needed to comply through communication efforts other

than those emails sent to an email address created for the sole purpose of the convening Educational Nominating Panel in 2024.

Additionally, there were no attempts made to contact Dukes by letter correspondence via U.S. postal mail when a response was not received from the May 8, 2025 letter. Instead, another letter dated June 13, 2025 was again sent via email only.

Dukes acknowledges that the Financial Disclosure Form was filed after the deadline, but the real issue is that Dukes did not have a meaningful opportunity to comply. Dukes wants to highlight that the Financial Disclosure Form was filed on 9-25-25 right after the telephone notification was received and Dukes learned of the requirement.

III. Respondent's Argument

Respondent Dukes points out that the Philadelphia Educational Nominating Panel's representatives had an obligation to give clear notice when she first took the public role. Dukes states that she never received onboarding materials, no training was conducted, no written packets were given, and no annual or other timeframe for reminders were sent, which negatively impacted Respondent's ability to timely comply with "the Rules" and thereby undercuts the fairness of the penalty, which is predicated on the assumption that Respondent received adequate notice and a meaningful and reasonable opportunity to comply." Dukes did not ignore "the Rules." Dukes was never provided with a copy of "the Rules" and currently does not have a copy. A penalty under these circumstances would undermine the fairness that the Ethics system is supposed to protect.

Dukes also points out that due to the Ethics Board's office neglecting to use all available means and methods of communication to contact Dukes, the Ethics Board cannot penalize someone for missing a deadline when all available and accessible means of communication were

not made available and accessible to Respondent Dukes. Therefore, compliance in filing the Financial Disclosure Form shows good faith efforts on the part of Respondent Dukes to comply where a paperwork based obligation exists rather than a willful disregard. Dukes should not be subject to a civil monetary penalty of \$1,000.00.

a. Respondent Dukes further states that notification by way of a telephone call to file a Financial Disclosure Form was received by Dukes in July/August 2025, which was after the June 30, 2025 date, as the Executive Director's Brief states that "Form" could have been filed "without a monetary penalty." Dukes respectfully disagrees that a June 30, 2025 date was ever provided. In fact, Dukes states that the Ethics Board's compliance staff in a telephone conversation indicated that as long as the "Form" gets filed, there would be NO penalty assessed, which had been her experience in the past regarding this type of issue with a delayed filing. Unfortunately, after the Financial Disclosure Form was filed, Dukes spoke with attorney Erin Ambrose who stated that information I received from the Ethics Board's compliance staff member was incorrect. Attorney Ambrose then stated that Dukes would have to pay a \$250 penalty for filing late. Dukes did not agree with paying the \$250 fee and also indicated that she was unemployed. Dukes ultimately requested paperwork to appeal the decision.

Respondent Dukes raises several defenses: 1) Dukes never received notification of the requirement to file in 2024 and/or prior to July/August 2025 (after the deadline) by way of actual and/or constructive notice; 2) Dukes never received any onboarding materials; 3) Dukes has never received the ordinances or "the Rules"; 4) Dukes was never provided any training materials from the Philadelphia Educational Nominating Panel; and 5) Dukes never received any written instructions or regular annual or otherwise reminders.

Dukes is simply pointing out that a penalty cannot be justified when the Ethics Board's compliance office never provided the information needed to comply through communication efforts other than emails sent to an inactive email address created for the sole purpose of the convening Educational Nominating Panel which concluded in 2024.

i. **Response.** Dukes was never furnished with a copy of the ordinance [Code Chapter 20-600 et al.] by any head of a department, agency, authority, board and commission, as stated in this paragraph, and could not comply with the Code Section 20-610, Regulation No 3. Dukes was also never provided any written instructions on how to complete said Financial Disclosure Form, which Dukes had no experience with completing.

ii. **Response.** Dukes states emphatically that notification by way of a telephone call to file a Financial Disclosure Form was received by Dukes in July/August 2025, which was after the June 30, 2025 date, as the Executive Director's Brief states that "Form" could have been filed "without a monetary penalty." Dukes respectfully disagrees that a June 30, 2025 date was ever provided by any telephone communication and/or email. In fact, Dukes states that the Ethics Board's compliance staff member in a telephone conversation stated that as long as the Financial Disclosure Form was completed and filed, there would be NO penalty assessed. However, after the "Form" was filed, attorney Ambrose stated that the information I received from the Ethics Board's compliance staff member was incorrect.

Respondent respectfully disagrees with the Executive Director assertion that "Board compliance staff offered the Respondent a time period to cure the deficiency without penalty - specifically, until June 30, 2025, nearly two months after the original due date." As stated, the emails and letters via email only to Dukes were sent to a non-active email account created and used solely for the purpose of participating in the Educational Nominating Panel convening and

concluding in 2024. It is reasonable to conclude that one year after a temporary public service obligation has concluded, a public servant's mailing address, email address, and/or telephone number may no longer be active or reliable for purposes of notice. In essence, once my service ended, the appointment based email account stopped being a practical way to reach me. They knew or had reason to know that people rotate off panels and do not rely on those accounts indefinitely. A reasonable system would update contact information or send parallel notice by mail. They did neither. Consequently, I never had a fair chance to comply before the deadline.

The assertion that "Board compliance staff undertook reasonable efforts, in excess of their statutory or regulatory obligations, to inform Respondent that her City Form was overdue but that it could still be filed without a penalty" is disingenuous and unsupported by the record. At no time did the Respondent receive a single piece of U.S. postal service mailed correspondence or written notice at her home address, an address at which she has continuously resided and maintained ownership for more than forty (40) years.

Both the Educational Nominating Panel and Ethics Board had my physical address from my appointment records and continued to have it throughout my service. Mailing notice is the most reliable method for something that carries a potential penalty. No attempt was made. The Ethics Board compliance office also did not call until after the deadline, which shows the Ethics Board had the ability to contact me directly but chose not to do so when it mattered. The Ethics Board did not have to chase me but merely stated that they used the least reliable method when more reliable methods were available and normally used by the City for official notice.

This failure is particularly significant in light of the due process and notice requirements set forth in Philadelphia Code Section 20-610(1), which require that a Respondent be provided with proper notice of an alleged violation and a meaningful opportunity to respond or cure prior

to the imposition of enforcement action or penalties. Fundamental principles of due process mandate actual or reasonably calculated notice designed to apprise the affected party of the alleged noncompliance.

Here, the absence of any mailed notice or documented correspondence to the Respondent's long-established home address demonstrates that the Board did not satisfy the notice requirements contemplated by Section 20-610(1). Without proof that notice was provided in a manner reasonably calculated to reach the Respondent, the Board cannot credibly claim that it afforded the Respondent a fair and reasonable opportunity to comply or avoid penalty. Any enforcement action predicated on such deficient notice is inconsistent with both the Philadelphia Code and constitutional due process protections.

iii. Response. Respondent Dukes has mitigating facts as stated in her Brief and are as follows: 1) Dukes made a good faith effort to comply after becoming aware of a requirement to file despite the fact that NO written instructions were ever provided and NO ordinances were provided by any overseeing departments. 2) reasonably prompt corrective action occurred despite having NO clear instructions on how to complete the legal document. 3) consequences of incorrect responses being subject to further penalties if the "Form" was completed incorrectly, and 4) reaching out and awaiting assistance from Board compliance staff to complete the "Form."

Accordingly, the Board should find that Respondent did not violate the Philadelphia Code Section 20-610(1), and dismiss this matter without being subjected to any civil monetary penalty.

Date: January 5, 2026

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Dee Dukes', written over a horizontal line.

Dee Dukes, Respondent
Educational Nominating Panel in 2024
of the Philadelphia School District

Copy to: (via email)
J. Shane Creamer, Jr. Esq.
Executive Director

Richard Barzaga, Esq.
Senior Staff Attorney

Erin Ambrose, Esq.
Staff Attorney

City of Philadelphia Board of Ethics
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CERTIFICATE OF SERVICE

I certify that a true and correct copy of the above-captioned Brief in Opposition to the Executive Director's Notice of Administrative Enforcement Proceeding was served upon the following as indicated:

<u>By Email</u> Louis S. Rulli, Esquire Hearing Officer C/O Jordana Greenwald, Esquire General Counsel City of Philadelphia Board of Ethics 1515 Arch Street, 18th Floor Philadelphia, PA 19102 BOEGCStaff@phila.gov	<u>By Email</u> J. Shane Creamer, Jr., Esquire Executive Director Philadelphia Board of Ethics 1515 Arch Street, 18th Floor Philadelphia, PA 19102
<u>By Email</u> Richard Barzaga, Esquire Senior Staff Attorney Philadelphia Board of Ethics 1515 Arch Street, 18th Floor Philadelphia, PA 19102	<u>By Email</u> Erin Ambrose, Esquire Staff Attorney Philadelphia Board of Ethics 1515 Arch Street, 18th Floor Philadelphia, PA 19102

Dated: January 5, 2026


Dee Dukes, Respondent